

26VECV00952 26VECV00952

County: los-angeles

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Case Number: 26VECV00952 Hearing Date: July 27, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Michael

Scruton,

Plaintiff,

v.

Ford

Motor Company,

Defendant.

Case Number Department

26VECV00952 107

COURT'S [TENTATIVE]

ORDER RE:

Motion

for Judgment on the Pleadings

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

On

April 8, 2023, Plaintiff Michael Scruton ("Plaintiff") acquired a certified pre-owned 2021 Ford Ecosport (the "Vehicle"). (Complaint ¶ 6.) The Vehicle was defective. (Complaint ¶ 11.)

On

February 17, 2026, Plaintiff filed a complaint against Defendants Ford Motor Company ("Defendant") and Does 1 through 20, alleging causes of action for: (1) breach of express warranty under the Song-Beverly Consumer Warranty Act; (2) breach of implied warranty under the Song-Beverly Consumer Warranty Act; and (3) violation of the Song-Beverly Act section 1793.2, subdivision (b).

On

June 26, 2026, Defendant filed a motion for judgment on the pleadings (the "Motion"). On July 14, 2026, Plaintiff filed an opposition. On July 20, 2026, Defendant filed a reply.

II.

MEET

AND CONFER

Before filing a motion

for judgment on the pleadings, the moving party is required to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading . . ." (Code Civ. Proc., § 439, subd. (a).)

Defendant's

counsel submits a declaration stating they met and conferred with Plaintiff's counsel by telephone, but the parties did not reach an agreement. (Villanueva Declaration ¶ 5.) Defendant satisfied the meet and confer requirement.

III.

TIMELINESS

“No

motion may be made pursuant to this section if a pretrial conference order has been entered pursuant to Section 575, or within 30 days of the date the action is initially set for trial, whichever is later, unless the court otherwise permits.” (Code Civ. Proc., § 438, subd. (e).)

This

matter is set for trial July 13, 2027. (06/29/26 Minute Order.) The Motion is brought more than 30 days before the date initially set for trial. Thus, it is timely.

IV.

LEGAL

STANDARD

A

defendant may move for judgment on the pleadings on the ground that “[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant.” (Code Civ. Proc., § 438, subd. (c)(1)(B)(ii).) “In considering whether a defendant is entitled to judgment on the pleadings [the court] look[s] only to the face of the pleading under attack and do[es] not consider matters raised in the answer. All facts alleged in the complaint are admitted for purposes of the motion, and the court determines whether those facts constitute a cause of action. The court also may consider matters subject to judicial notice.” (Hunt v. County of Shasta (1990) 225 Cal.App.3d 432, 440.)

V.

DISCUSSION

Defendant

moves for judgment on the pleadings as to all of Plaintiff's causes of action. (Motion p. 2.) Defendant argues the Motion should be granted because Plaintiff did not purchase a new vehicle subject to remedies under the Song-Beverly Consumer Warranty Act. (Motion p. 2.) Defendant also argues Plaintiff's implied warranty claim fails because Defendant is a manufacturer and Plaintiff cannot assert implied warranties against Defendant. (Motion pp. 7-8.)

In

opposition, Plaintiff argues they were provided with new warranties at the time of purchase, so the Vehicle is a new motor vehicle as defined by Civil Code section 1793.22. (Opposition p. 4.) Plaintiff also argues the “new motor vehicle” provision in Civil Code section 1793.22 applies only to claims brought under Civil Code section 1793.2, subdivision (d), and does not apply to Plaintiff’s first and third causes of action. (Opposition p. 5.) Finally, Plaintiff argues their implied warranty claims are viable because Plaintiff alleges Defendant issued the Vehicle’s express warranty and authorized repairs. (Opposition p. 6.)

In

reply, Defendant argues Plaintiff improperly relies on matters outside the pleadings. (Reply pp. 1-2.) Defendant further argues the implied warranty claim fails because Plaintiff purchased a used vehicle, Defendant is the manufacturer, and Plaintiff cannot state an implied warranty claim against Defendant under Civil Code section 1795.5. (Reply pp. 4-5.)

As

an initial matter, Plaintiff relies on Plaintiff’s counsel’s declaration submitted with the Motion and exhibits attached to that declaration. (Opposition pp. 3, 5-6.) The court here considers only the pleading. (See *Hunt v. County of Shasta*, supra, 225 Cal.App.3d at p. 440.)

“If

the manufacturer or its representative in this state is unable to service or repair a new motor vehicle, as that term is defined in paragraph (2) of subdivision (e) of Section 1793.22, to conform to the applicable express warranties after a reasonable number of attempts, the manufacturer shall either promptly replace the new motor vehicle in accordance with subparagraph (A) or promptly make restitution to the buyer in accordance with subparagraph (B).” (Civ. Code, § 1793.2, subd. (d)(2).)

In *Rodriguez*

v. FCA US LLC (2024) 17 Cal.5th 189, 196, the Supreme Court of California held that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2) ’s definition of ‘new motor vehicle’ unless the new car warranty

was issued with the sale.” The Court found that “it would be anomalous to construe ‘other motor vehicle sold with a manufacturer’s new car warranty’ (§ 1793.22, subd. (e)(2)) to include any used car sold by a distributor or retailer with a preexisting, unexpired manufacturer’s warranty.” (Id. at p. 202.)

Plaintiff

alleges they “acquired a certified pre-owned 2021 Ford Ecosport[.]” (Complaint ¶ 6.) Plaintiff further alleges:

Along with the

acquisition of the Vehicle, Plaintiff received written warranties and other express and implied warranties including, but not limited to, warranties from Defendants that the Vehicle and its components would be free from all defects in material and workmanship; that the Vehicle would pass without objection in the trade under the Contract description; that the Vehicle would be fit for the ordinary purposes for which it was intended; that the Vehicle would conform to the promises and affirmations of fact made; and that Defendants would perform any repairs, alignments, adjustments, and/or replacements of any parts necessary to ensure that the Vehicle was free from any defects in material and workmanship.

(Complaint

¶ 9.) Finally, Plaintiff alleges:

The warranties

included a three (3) year or 36,000 mile basic warranty and a five (5) year or 60,000 mile powertrain warranty, which was extended by the Certified Pre-Owned warranty to include an additional twelve (12) month or 12,000 mile comprehensive limited warranty, as well as a seven (7) year or 100,000 mile powertrain limited warranty.

(Complaint

¶ 10.)

Plaintiff

relies on *Kiluk v. Mercedes-Benz USA, LLC* (“*Kiluk*”) (2019)

43 Cal.App.5th 334, to argue new motor vehicles under Civil Code section 1793.22, subdivision (e) includes CPO vehicles. (Opposition p. 5.) In *Kiluk*, supra, 43 Cal.App.5th at p. 340, the Court of Appeal held the jury was

permitted to analyze a manufacturer's liability under Civil Code section 1793.2 because the manufacturer stepped into the role of a retailer and was subject to a retailer's obligations under Civil Code section 1795.5. In reply, Defendant argues Kiluk, supra, 43 Cal.App.5th is distinguishable and is no longer good law following Rodriguez. (Reply p. 4.)

Plaintiff

also relies on Stiles v. Kia America, Inc. ("Stiles") (2024) 101 Cal.App.5th 913, 920. (Opposition p. 5.) Following Rodriguez, supra, 17 Cal.5th 189, Stiles was transferred and rendered not citable. The court does not consider it.

In

Rodriguez, supra, 17 Cal.5th at p. 195, the Supreme Court of California held that "a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was issued with the sale."

Here,

Plaintiff alleges the Vehicle was "certified" and "pre-owned[.]" (Complaint ¶ 6.) Plaintiff further alleges that "[a]long with the acquisition of the Vehicle, Plaintiff received written warranties and other express and implied warranties . . ." (Complaint ¶ 9.) It is unclear whether Plaintiff is alleging they received a new car warranty issued with the sale, such that this case falls outside of Rodriguez, or whether Plaintiff is alleging they purchased the Vehicle with an unexpired manufacturer's new car warranty, such that this case falls within the rule as stated in Rodriguez. However, nothing in the complaint suggests the warranty Plaintiff alleges they acquired with the Vehicle is not the "same type of manufacturer's warranty that accompan[ies] new cars." (Rodriguez, supra, 17 Cal.5th at p. 198.) The court concludes that whether the alleged warranty is the same type that accompanies new cars is a factual issue.

"[I]n

the sale of used consumer goods, liability for breach of implied warranty lies with distributors and retailers, not the manufacturer, where there is no evidence the manufacturer played any role in the sale of the used car to plaintiff." (Ruiz Nunez v. FCA US LLC (2021) 61 Cal.App.5th 385, 398, italics added (Ruiz Nunez).) "Under the lemon law, only distributors and retail sellers, not manufacturers, are liable

for breach of implied warranties in the sale of a used car where ... the manufacturer did not offer the used car for sale to the public." (Id. at p. 289, italics added.)

Here,

Plaintiff alleges the Vehicle was "engaged in the manufacture, sale, distribution, and/or importing of Ford motor vehicles and related equipment."

(Complaint ¶ 1.) Plaintiff alleges they "relied on Defendants' advertised trustworthiness of the CPO certification program in selecting the Vehicle" and received warranties from Defendant "[a]long with the acquisition of the Vehicle[.]" (Complaint ¶¶ 8-9.) Plaintiff further alleges:

Certified Pre-Owned

("CPO") vehicles undergo rigorous scrutiny by the manufacturer or an authorized dealership to meet specific quality standards before receiving the CPO designation. This process includes a comprehensive multi-point inspection of the vehicle's mechanical systems, safety features, and overall condition, as well as necessary repairs or refurbishments to ensure compliance with stringent certification requirements.

(Complaint

¶ 7.) Thus, Plaintiff alleges Defendant played a role Plaintiff's acquisition of the Vehicle, which takes this matter outside of the rule as stated in Ruiz Nunez.

VI.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: July 27, 2026 _____ Hon.
Eric Harmon

Judge of the Superior Court